

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUCO049777: LAS POSAS PLAZA, LP vs KITCHEN BATH AND FLOORS, INC.
08/20/2026 in Department 20**

**Motion to Compel Further Responses to Request for Production of Documents, Set One
From Defendant Kitchen Bath and Floors, Inc as to Request Nos. 1-6, 15-18 and 20-22 and
for Production of Responsive Documents; Request for Monetary Sanctions**

**Motion to Compel Further Responses to Request for Production of Documents, Set One
From Defendant Gloria Dubon as to Request Nos. 1-6 and 14-21 and for Production of
Responsive Documents; Request for Monetary Sanctions**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

1. Plaintiff Las Posas Plaza, LP's ("Plaintiff") Motion to Compel Further Responses to Request for Production of Documents, Set One From Defendant Kitchen Bath and Floors, Inc ("KBF") as to Request Nos. 1-6, 15-18 and 20-22 and for Production of Responsive Documents; Request for Monetary Sanctions

2. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One From Defendant Gloria Dubon as to Request Nos. 1-6 and 14-21 and for Production of Responsive Documents; Request for Monetary Sanctions

Tentative:

1. Plaintiff's unopposed Motion to Compel Further Responses to Request for Production of Documents, Set One from Defendant KBF as to Request Nos. 1-6, 15-18 and 20-22, and for Production of Responsive Documents is GRANTED as follows:

On or before August 31, 2026, Defendant KBF shall provide further verified, code-compliant responses and production of all documents responsive to Request Nos. 1-6, 15-18 and 20-22. The responses provided do not comply with the requirements of Code of Civil Procedure sections 2031.210-2031.230. Plaintiff has established good cause for the production of the requested documents.

2. Plaintiff's unopposed Motion to Compel Further Responses to Request for Production of Documents, Set One From Defendant Gloria Dubon as to Request Nos. 1-6 and 14-21 and for Production of Responsive Documents is GRANTED as follows:

On or before August 31, 2026, Defendant Gloria Dubon shall provide further verified, code-compliant responses and production of all documents responsive to Request Nos. 1-6 and 14-21. The responses provided do not comply with the requirements of Code of Civil Procedure sections 2031.210-2031.230. Plaintiff has established good cause for the production of the requested documents.

Plaintiff's request for monetary sanctions in each motion is DENIED. Code of Civil Procedure section 2031.310 subdivision (b)(2) requires a meet and confer declaration in compliance with section 2016.040. Plaintiff's counsel has not shown compliance with that section – specifically subdivision (a).

Plaintiff shall provide notice.

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